

FIFA®

Code of Ethics

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Fédération Internationale de Football Association

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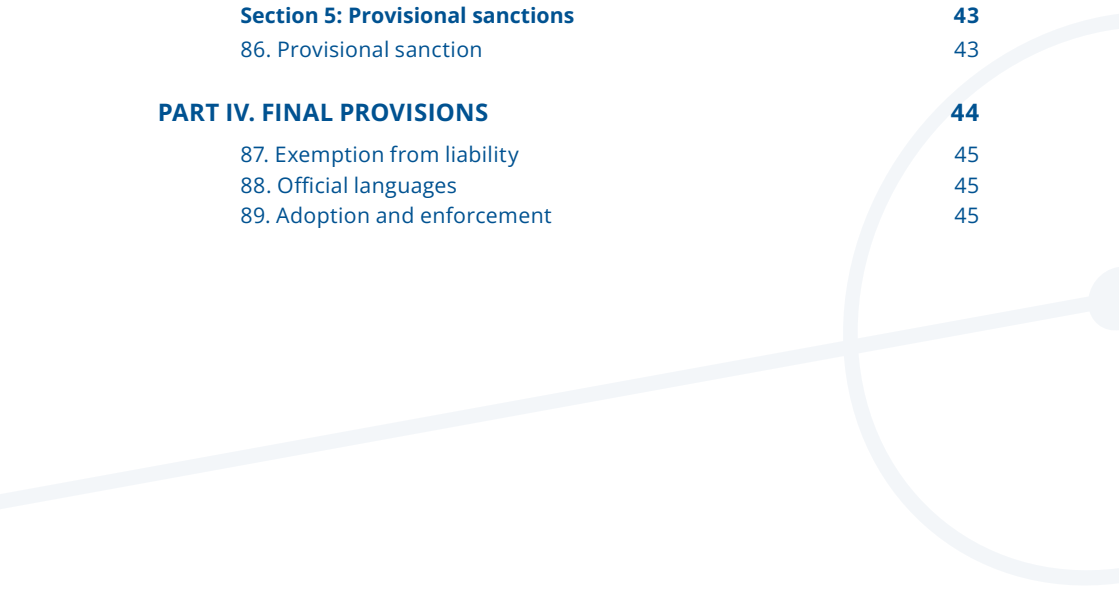
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DEFINITIONS

For the purpose of this Code, the terms set out below are defined as follows:

1. **FIFA:** Fédération Internationale de Football Association.
2. **Official:** any board member (including the members of the Council), committee member, referee, assistant referee, coach, trainer or any other person responsible for technical, medical or administrative matters in FIFA, a confederation, a member association, a league or a club as well as all other persons obliged to comply with the FIFA Statutes (except players, match agents licensed by FIFA, and football agents).
3. **Match agent licensed by FIFA:** as per the FIFA Match Agent Regulations.
4. **Football agent:** as per the definition contained in the FIFA Football Agents Regulations.
5. **Player:** any football player licensed by an association.
6. **Related party:** any party related to persons bound by the Code shall be considered a related party if they fulfil one or more of the following criteria:
 - a) representative or employee;
 - b) spouse or domestic partner;
 - c) individual sharing the same household, regardless of the personal relationship;
 - d) other family member with whom they have a close relationship within a third degree;
 - e) legal entity, partnership or any other fiduciary institution, if the person bound by this Code or the person receiving an undue advantage alternatively:
 - i) holds a management position within that entity, partnership or fiduciary institution;
 - ii) directly or indirectly controls the entity, partnership or fiduciary institution;
 - iii) is a beneficiary of the entity, partnership or fiduciary institution;
 - iv) performs services on behalf of such entity, partnership or fiduciary institution, regardless of the existence of a formal contract.

- 7. **FIFA events:** any event, including but not limited to FIFA Congress, Council or committee meetings, FIFA competitions, as well as any other event that is within FIFA's authority or organised by FIFA.
- 8. **Ethics Committee:** references to the Ethics Committee in this Code shall include the investigatory and/or adjudicatory chamber.

NB: Terms referring to natural persons are applicable to both genders. Any term in the singular applies to the plural and vice-versa.

The definitions section in the FIFA Statutes shall also apply.





SCOPE OF APPLICATION

1. Scope of applicability

1. This Code shall apply to any conduct, other than those specifically provided by other regulations and connected to the field of play that damages the integrity and reputation of football and in particular to illegal, immoral and unethical behaviour of the persons covered under article 2 of this Code.
2. The rules of conduct defined under part II, section 5 (articles 14 to 30) of this Code shall be included within their respective applicable regulations by the confederations and member associations unless such rules of conduct are already included within their respective regulations currently in place. The principles of the sanctioning system referred to under part II, section 5 (articles 14 to 30) of this Code shall be used as a minimum requirement guidance by the confederations and member associations.

2. Persons covered

1. This Code shall apply to all officials and players as well as match agents licensed by FIFA and football agents, under the conditions of article 1 of this Code.
2. The Ethics Committee is entitled to investigate and judge the conduct of persons who were bound by this or another applicable Code at the time the relevant conduct occurred, regardless of whether the person remains bound by the Code at the time proceedings commence or any time thereafter.

3. Applicability in time

This Code applies to conduct whenever it occurred, including before the enactment of this Code. An individual may be sanctioned for a breach of this Code only if the relevant conduct contravened the Code applicable at the time it occurred. The sanction may not exceed the maximum sanction available under the then-applicable Code.

4. Scope of the Code, omissions, custom, doctrine and jurisprudence

1. This Code governs every subject to which the text or the meaning of its provisions refers.
2. If there are any omissions in this Code with respect to procedural rules, and in case of doubts regarding the interpretation of the Code, the Ethics Committee shall decide in accordance with FIFA custom.
3. During all its operations, the Ethics Committee may draw on precedents and principles already established by sports doctrine and jurisprudence.

5. Division of the Ethics Committee, division of proceedings

1. The Ethics Committee shall be composed of an investigatory chamber and an adjudicatory chamber.
2. Ethics Committee proceedings shall be made up of an investigation and an adjudicatory process.





SUBSTANTIVE LAW

SECTION 1: BASIS FOR SANCTIONS

6. Basis for sanctions

1. The Ethics Committee may pronounce the sanctions described in this Code, the FIFA Disciplinary Code and the FIFA Statutes.
2. Unless otherwise specified, breaches of this Code shall be subject to the sanctions set forth in this Code, whether acts of commission or omissions, whether they have been committed deliberately or negligently, whether or not the breach constitutes an act or attempted act, and whether the parties acted as principal, accomplice or instigator.

SECTION 2: DISCIPLINARY MEASURES

7. Type of sanctions

1. The following sanctions may be imposed for breaches of this Code or any other FIFA rules and regulations:
 - a) warning;
 - b) reprimand;
 - c) compliance training;
 - d) return of awards;
 - e) fine;
 - f) community football service;
 - g) match suspension;
 - h) ban from dressing rooms and/or team bench;
 - i) ban on entering a stadium;
 - j) ban on taking part in any football-related activity.
2. The specifications in relation to each sanction in the FIFA Disciplinary Code shall also apply.

8. Suspension of sanctions

1. Upon request from the relevant party, the adjudicatory chamber can decide to suspend the sanction provided for by article 7 paragraph 1 (j) of this Code. The probationary period shall consist of anything from one to five years.
2. If the person benefiting from a suspended sanction commits any other breach of this Code during the probationary period, the suspension shall automatically be revoked and the original sanction fully applied and added to the sanction imposed for the new breach.

SECTION 3: DETERMINING THE SANCTION

9. General rules

1. When imposing a sanction, the Ethics Committee shall take into account all relevant factors in the case, including the nature of the offence; the substantial interest in deterring similar misconduct; the offender's assistance to and cooperation with the Ethics Committee; the motive; the circumstances; the degree of the offender's guilt; the extent to which the offender accepts responsibility, and whether the person mitigated their guilt by returning the advantage received, where applicable.
2. In case of mitigating circumstances, and if deemed appropriate taking into account all circumstances of the case, the Ethics Committee may go below the minimum sanction and/or decide to hand down alternative sanctions as provided under article 7 paragraph 1.
3. Unless this Code mentions otherwise, the Ethics Committee shall decide the scope and duration of any sanction.
4. Sanctions may be limited to a geographical area or to one or more specific categories of match or competition.
5. The Ethics Committee may directly share or otherwise order the responsible FIFA body to share information on a case with the appropriate public authorities without prejudice to the relevant laws and existing legal channels.

10. Concurrent breaches

1. Where more than one breach has been committed, the sanction other than monetary sanctions shall be based on the most serious breach.
2. Concurrent breaches shall be considered aggravating circumstances.

11. Repeated breaches

1. Repeated breaches shall be considered aggravating circumstances. In such circumstances, the Ethics Committee may go beyond the maximum sanction provided for a violation of the relevant rule, as specified in this Code.
2. Repeated breaches occur if another offence of a similar nature and gravity is committed repeatedly over a period of time. The limitation period for prosecution shall only apply as from the date the most recent offence has been committed and shall therefore apply to all previous breaches.



12. Recidivism

1. Recidivism shall be considered aggravating circumstances. In such circumstances, the Ethics Committee may go beyond the maximum sanction provided for a violation of the relevant rule, as specified in this Code.
2. Recidivism occurs if another offence of a similar nature and gravity is committed within 15 years of notification of a decision sanctioning a previous offence.

SECTION 4: LIMITATION PERIOD

13. Limitation period for prosecution

1. As a general rule, breaches of the provisions of this Code may no longer be prosecuted after five years have elapsed.
2. Offences relating to bribery and corruption (article 28), as well as to misappropriation and misuse of funds (article 29) may no longer be prosecuted after ten years have elapsed.
3. Offences relating to threats, the promise of advantages, coercion and all forms of sexual abuse, harassment and exploitation (article 24) are not subject to such limitation period.
4. The limitation period, when applicable, shall be extended by half its length if a formal investigation is opened before its expiration.
5. The limitation period, when applicable, shall be interrupted where criminal proceedings are formally opened against a person bound by this Code during such proceedings.
6. In case of repeated breaches, the limitation period as described above shall start only after the last of the repeated breaches has ended.

SECTION 5: RULES OF CONDUCT

Subsection 1: Duties

14. General duties

1. Persons bound by this Code shall be aware of the importance of their duties and concomitant obligations and responsibilities. In particular, persons bound by this Code shall fulfil and exercise their duties and responsibilities diligently, especially with regard to finance-related matters.
2. Persons bound by this Code shall respect FIFA's regulatory framework to the extent applicable to them.

3. Persons bound by this Code shall appreciate the impact their conduct may have on FIFA's reputation, and shall therefore behave in a dignified and ethical manner and act with complete credibility and integrity at all times.
4. Persons bound by this Code must refrain from any activity or behaviour or any attempted activity or behaviour that might give rise to the appearance or suspicion of improper conduct as described in the sections that follow.
5. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years.

15. Duty of neutrality

1. In dealings with government institutions, national and international organisations, associations and groupings, persons bound by this Code shall, in addition to observing the basic rules of article 14, remain politically neutral, in accordance with the principles and objectives of FIFA, the confederations, associations, leagues and clubs, and generally act in a manner compatible with their function and integrity.
2. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years.

16. Duty of loyalty

1. Persons bound by this Code shall have a fiduciary duty to FIFA, the confederations, associations, leagues or clubs. A breach of fiduciary duty occurs when, *inter alia*, someone who is placed in a position of responsibility or trust acts in a way that is detrimental to the interests of FIFA, the confederations, associations, leagues or clubs or is likely to damage their reputation.
2. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years.

17. Duty of confidentiality

1. Depending on their function, information of a confidential nature divulged to persons bound by this Code while performing their duties shall be treated as confidential or secret by them, if the information is given with the understanding or communication of confidentiality and is consistent with FIFA principles.
2. The obligation to respect confidentiality survives the termination of any relationship which makes a person subject to this Code.
3. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years.



18. Duty to report

1. Persons bound by this Code who become aware of any infringements of this Code shall inform, in writing, the secretariat and/or chairperson of the investigatory chamber of the Ethics Committee directly.
2. Failure to report such infringements shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football- related activity for a maximum of two years.

19. Duty to cooperate

1. Persons bound by this Code shall assist and cooperate truthfully, fully and in good faith with the Ethics Committee at all times, regardless of whether they are involved in a particular matter as a party, as a witness, or in any other role. This requires, *inter alia*, full compliance with Ethics Committee requests, including without limitation requests to clarify facts; provide oral or written testimony; submit information, documents or other material; and disclose details regarding income and finances, if the Ethics Committee deems it to be necessary.
2. Persons bound by this Code who are required to cooperate with the Ethics Committee in a specific case, regardless of whether they are involved as a party, as a witness, or in any other role, shall treat the information provided and their involvement strictly confidentially, unless otherwise instructed by the Ethics Committee.
3. Persons bound by this Code shall not take any action actually or apparently intended to obstruct, evade, prevent, or otherwise interfere with any actual or potential Ethics Committee proceedings.
4. In connection with any actual or potential Ethics Committee proceedings, persons bound by this Code shall not conceal any material fact; make any materially false or misleading statement or representation; or submit any incomplete, materially false or misleading information or other material.
5. Persons bound by this Code shall not harass, intimidate, threaten or retaliate against someone for any reason related to that person's actual, potential or perceived assistance to or cooperation with the Ethics Committee.
6. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years.

Subsection 2: Conflicts of interest, financial benefits and protection of personal rights

20. Conflicts of interest

1. Persons bound by this Code shall not perform their duties (in particular, preparing or participating in the taking of a decision) in situations in which an existing or potential conflict of interest might affect such performance.

A conflict of interest arises if a person bound by this Code has, or appears to have, secondary interests that could influence their ability to perform their duties with integrity in an independent and purposeful manner. Secondary interests include, but are not limited to, gaining any possible advantage for the persons bound by this Code themselves or related parties as defined in this Code.

2. Before being elected, appointed or employed, persons bound by this Code shall disclose any relations and interests that could lead to situations of conflicts of interest in the context of their prospective activities.
3. Persons bound by this Code shall not perform their duties (in particular preparing, or participating in, the taking of a decision) in situations in which there is a danger that a conflict of interest might affect such performance. Any such conflict shall be immediately disclosed and notified to the organisation for which the person bound by this Code performs their duties.
4. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years. In serious cases and/or in the case of repetition, a ban on taking part in any football-related activity may be pronounced for a maximum of five years.

21. Offering and accepting gifts or other benefits

1. Persons bound by this Code may only offer or accept gifts or other benefits to and from persons within or outside FIFA, or in conjunction with intermediaries or related parties as defined in this Code, where such gifts or benefits:
 - a) have symbolic or trivial value;
 - b) are not offered or accepted as a way of influencing persons bound by this Code to execute or omit an act that is related to their official activities or falls within their discretion;
 - c) are not offered or accepted in contravention of the duties of persons bound by this Code;
 - d) do not create any undue pecuniary or other advantage; and
 - e) do not create a conflict of interest.

Any gifts or other benefits not meeting all of these criteria are prohibited.



2. If in doubt, gifts or other benefits shall not be accepted, given, offered, promised, received, requested or solicited. In all cases, persons bound by this Code shall not accept, give, offer, promise, receive, request or solicit from anyone within or outside FIFA, or in conjunction with intermediaries or related parties as defined in this Code, cash in any amount or form. If declining the gift or benefit would offend the giver on the grounds of cultural norms, persons bound by this Code may accept the gift or benefit on behalf of their respective organisation and shall report it and hand it over, where applicable, immediately thereafter to the competent body.
3. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years. Any amount unduly received shall be included in the calculation of the fine. In addition to the fine, the gift or benefit unduly received should be returned, if applicable. In serious cases and/or in the case of repetition, a ban on taking part in any football-related activity may be pronounced for a maximum of five years.

22. Commission

1. Unless covered by a genuine commercial agreement, persons bound by this Code shall not accept, give, offer, promise, receive, request or solicit commission for themselves or third parties for negotiating deals or conducting other business in connection with their duties.
2. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years. Any amount unduly received shall be included in the calculation of the fine. In serious cases and/or in the case of repetition, a ban on taking part in any football-related activity may be pronounced for a maximum of five years.

23. Discrimination and defamation

1. Persons bound by this Code shall not offend the dignity or integrity of a country, a person or group of people through contemptuous, discriminatory or derogatory words or actions on account of race, skin colour, ethnicity, nationality, social origin, gender, disability, sexual orientation, language, religion, political or any other opinion, wealth, birth or any other status or any other reason.
2. Persons bound by this Code are forbidden from making any public statements of a defamatory nature towards FIFA and/or towards any other person bound by this Code in the context of FIFA events.
3. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a maximum of two years. In serious cases and/or in the case of repetition, a ban on taking part in any football-related activity may be pronounced for a maximum of five years.

24. Protection of physical and mental integrity

1. Persons bound by this Code shall protect, respect and safeguard the integrity and personal dignity of others.
2. Persons bound by this Code shall not use offensive gestures and language in order to insult someone in any way or to incite others to hatred or violence.
3. Persons bound by this Code must refrain from all forms of physical or mental abuse, all forms of harassment, and all other hostile acts intended to isolate, ostracise or harm the dignity of a person.
4. Threats, the promise of advantages, coercion and all forms of sexual abuse, harassment and exploitation are particularly prohibited.
5. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a minimum of two years. In cases of sexual exploitation or abuse, or in serious cases and/or in the case of repetition, a ban on taking part in any football related activity may be pronounced for a minimum of ten years.
6. Persons bound by this Code who may have been the victim of potential sexual abuse or harassment may appeal before CAS against the decision rendered by the adjudicatory chamber in the related proceedings in accordance with the procedure defined in this Code. They will, in particular, be provided with the decision, the final report of the investigatory chamber, as well as with any document or evidence produced by the parties before the adjudicatory chamber. Their deadline to appeal the relevant decision before CAS shall commence on the day of notification of those documents.
7. Confederations and associations shall immediately notify FIFA of any decision taken by their respective bodies sanctioning a person for conduct described in this article.

Subsection 3: Forgery and falsification, abuse of position, betting and gambling

25. Forgery and falsification

1. Persons bound by this Code are forbidden from forging a document, falsifying an authentic document or using a forged or falsified document.
2. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a minimum of two years.



26. Abuse of position

1. Persons bound by this Code shall not abuse their position in any way, especially to take advantage of their position for private aims or gains.
2. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a minimum of two years. The sanction shall be increased accordingly where the person holds a high position in football, as well as in relation to the relevance and amount of the advantage received.

27. Involvement with betting, gambling or similar activities

1. Persons bound by this Code shall be forbidden from participating in, either directly or indirectly, betting, gambling, lotteries or similar events or transactions related to football matches or competitions and/or any related football activities.
2. Persons bound by this Code shall not have any direct or indirect financial interest (through or in conjunction with third parties) in activities, such as betting, gambling, lotteries or similar events or transactions connected with football matches and competitions. Interests include gaining any possible advantage for the persons bound by this Code themselves and/or related parties.
3. Provided that the relevant conduct does not constitute another violation of this Code, violation of this article shall be sanctioned with an appropriate fine of at least CHF 100,000 and a ban on taking part in any football-related activity for a maximum of three years. Any amount unduly received shall be included in the calculation of the fine.

Subsection 4: Bribery and corruption, misappropriation and misuse of funds, and manipulation of football matches or competitions

28. Bribery and corruption

1. Persons bound by this Code shall not accept, give, offer, promise, receive, request or solicit any personal or undue pecuniary or other advantage in order to obtain or retain business or any other improper advantage to or from anyone within or outside FIFA. Such acts are prohibited regardless of whether carried out directly or indirectly through, or in conjunction with, third parties. In particular, persons bound by this Code shall not accept, give, offer, promise, receive, request or solicit any personal or undue pecuniary or other advantage for the execution or omission of an act that is related to their official activities and is contrary to their duties or falls within their discretion.

2. Persons bound by this Code shall refrain from any activity or behaviour that might give rise to the appearance or suspicion of a breach of this article.
3. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 100,000 as well as a ban on taking part in any football-related activity for a minimum of five years. Any amount unduly received shall be included in the calculation of the fine. The sanction shall be increased accordingly where the person holds a high position in football, as well as in relation to the relevance and amount of the advantage received.

29. Misappropriation and misuse of funds

1. Persons bound by this Code shall not misappropriate or misuse funds of FIFA, the confederations, associations, leagues or clubs, whether directly or indirectly through, or in conjunction with, third parties.
2. Persons bound by this Code shall refrain from any activity or behaviour that might give rise to the appearance or suspicion of a breach of this article.
3. Violation of this article shall be sanctioned with an appropriate fine of at least CHF 100,000 as well as a ban on taking part in any football-related activity for a minimum of five years. The amount of misappropriated funds shall be included in the calculation of the fine. The sanction shall be increased accordingly where the person holds a high position in football, as well as in relation to the relevance and amount of the funds concerned or of the advantage received.

30. Manipulation of football matches or competitions

1. Persons bound by this Code are forbidden from being involved in the manipulation of football matches and competitions, and shall immediately report to the Ethics Committee any approach in connection with activities and/or information directly or indirectly related to the possible manipulation of a football match or competition.
2. The competence to adjudicate on all conduct related to the manipulation of football matches or competitions, both on and off the field of play, remains reserved for the FIFA Disciplinary Committee.
3. The investigatory chamber shall transfer to the Disciplinary Committee any information obtained during its investigatory activity that might be related to conduct committed by any persons bound by this Code in violation of this article.





ORGANISATION AND PROCEDURE

CHAPTER I: ORGANISATION

SECTION 1: COMPETENCE OF THE ETHICS COMMITTEE

31. Competence of the Ethics Committee

1. The Ethics Committee has the exclusive competence to investigate and judge the conduct of all persons bound by this Code where such conduct:
 - a) has been committed by an individual who was elected, appointed or assigned by FIFA to exercise a function;
 - b) directly concerns their FIFA-related duties or responsibilities; or
 - c) is related to the use of FIFA funds.
2. The Ethics Committee is competent to decide on matters affecting players, coaches or any other official bound by this Code where said conduct does not fall under the competence of any confederation or member association, where no formal investigation has been initiated by the competent confederation or member association 90 days after the matter became known to FIFA, or where the relevant confederation or member association agrees with FIFA to confer the competence regarding the relevant matter on FIFA.

SECTION 2: COMMON RULES FOR THE INVESTIGATORY AND ADJUDICATORY CHAMBERS

32. Composition of the investigatory and adjudicatory chambers

The composition of the investigatory and the adjudicatory chambers shall be in accordance with the FIFA Statutes.

33. Deputising

If the chairperson of either chamber is prevented from acting (whether due to personal or factual circumstances), one of the deputy chairpersons shall replace them. In the event that the deputy chairpersons are also prevented from acting, a member of the relevant chamber, on the basis of seniority, shall act as chairperson.

34. Secretariats

1. The general secretariat of FIFA shall provide both the investigatory and adjudicatory chambers with a secretariat with the necessary staff under the responsibility of the Director of the Secretariat to the Independent Committees. The secretariat of each chamber shall take care of the respective filing of the case files, which must be kept for at least ten years.

2. The secretariat of the investigatory chamber, under the authority of the chairperson of the investigatory chamber or under the authority of the chief of the investigation, shall take charge of the administrative and legal work related to proceedings and provide support to the investigatory chamber for the completion of its tasks; in particular, it shall draft the minutes, final reports and any other document required by the members of the investigatory chamber.
3. The secretariat of the adjudicatory chamber, under the authority of the chairperson of the adjudicatory chamber, shall take charge of the administrative and legal work related to proceedings and provide support to the adjudicatory chamber for the completion of its tasks; in particular, it shall draft the minutes and any other document required by the chairperson of the adjudicatory chamber.

35. Independence

1. The members of the Ethics Committee shall manage their investigations and proceedings and render their decisions entirely independently and impartially and shall avoid any third-party influence.
2. The members of the Ethics Committee and their immediate family members shall not belong to any other judicial body within FIFA, to the FIFA Council or to any standing committee of FIFA.
3. The members of the Ethics Committee shall not belong to any body or carry out any position with regard to FIFA, a confederation or a member association, other than being member of a judicial body at FIFA, confederation or national level.

36. Withdrawal and challenges

1. A member of the Ethics Committee shall decline to participate in any investigation or adjudicatory proceedings concerning a matter where there are legitimate grounds for questioning their independence or impartiality and/or if there is a conflict of interest. They shall disclose any circumstance which may give rise to any such ground.
2. The foregoing shall apply, *inter alia*, in the following cases:
 - a) if the member in question has a direct interest in the outcome of the matter;
 - b) if the member has a personal bias or prejudice concerning a party; or personal, first-hand knowledge of disputed evidentiary facts material to the proceedings; or has expressed an opinion, other than as part of the proceedings in question, concerning the outcome of the proceedings; or when the immediate family of the member is a party to the subject matter in controversy, is a party to the proceedings or has any other interest that could be substantially affected by the outcome of the proceedings and their impartiality;



- c) if the member has the same nationality as the party implicated;
 - d) if the member has already dealt with the case in a different function other than their function as a member of the Ethics Committee.
3. Members who decline to participate shall notify the chairperson immediately.
4. An objection against a member of the Ethics Committee believed not to be independent or impartial must be submitted within five days following the identification of the grounds for non-participation, failing which, such objection shall be deemed waived.
- The claim must cite the grounds and, if possible, be substantiated.
5. The chairperson of the relevant chamber shall decide whether any such claim is valid if the member in question has not declined to participate of their own accord. If the objection is against the chairperson, the chairperson or the deputy chairperson of the FIFA Appeal Committee shall decide.

37. Confidentiality

1. The members of the Ethics Committee and the members of the secretariats shall ensure that everything disclosed to them during the course of their duty remains confidential, in particular, deliberations and private personal data in compliance with the FIFA Data Protection Regulations.
2. Notwithstanding paragraph 1 above, the investigatory chamber or the adjudicatory chamber may, if deemed necessary and in an appropriate form, inform the public about or confirm ongoing or closed proceedings, and rectify information that is wrong or rumours. Any release of such information shall respect the presumption of innocence and the personality rights of those concerned.
3. The investigatory chamber or the adjudicatory chamber may, in an appropriate form and/or via the website FIFA.com, inform the public about the reasons for any decision and/or the closure of any investigation. In particular, the chairperson of the adjudicatory chamber may decide to publish the decision taken, partly or in full, provided that the names mentioned in the decision (other than the ones related to the party) and any other information deemed sensitive by the chairperson of the adjudicatory chamber, are duly anonymised.
4. In the event of a breach of this article by a member of the Ethics Committee, the relevant member shall be suspended by a decision taken by the majority of the other members of the respective chamber until the next FIFA Congress.

CHAPTER II: PROCEDURE

SECTION 1: PROCEDURAL RULES

Subsection 1: General rules

38. Parties

Only the accused are deemed to be parties.

39. Representation

1. During any dealings with the Ethics Committee, parties and other persons bound by this Code may have legal representation at their own cost and expense.
2. The parties and other persons bound by this Code are free to choose their own legal counsel or representation.
3. The Ethics Committee may request that the representatives of parties and other persons bound by this Code submit a duly signed power of attorney.
4. The Ethics Committee may limit the number of legal representatives of a party if deemed excessive.

40. Legal aid

1. In order to guarantee their rights, individuals bound by this Code and with insufficient financial means may request legal aid from FIFA for the purpose of proceedings before the Ethics Committee.
2. Applicants for legal aid must submit reasoned requests and supporting documents.
3. The secretariat establishes a list of pro bono counsel.
4. According to each applicant's needs, and subject to prior written confirmation by FIFA, legal aid may be provided as follows:
 - a) The applicant may be released from having to pay the costs of proceedings.
 - b) Pro bono counsel may be selected by the applicant from the list established by the secretariat.
 - c) The applicant's own reasonable travel and accommodation costs and those of witnesses and experts they call to testify may be covered by FIFA, including the travel and accommodation costs of any pro bono counsel selected from the list established by the secretariat.



5. The chairperson of the adjudicatory chamber of the Ethics Committee decides on requests for legal aid. Such decisions are final.
6. Further conditions and requirements associated with legal aid and pro bono counsel may be communicated by circular letter.
7. In cases where the party could not be reached, the adjudicatory chamber may appoint a pro bono counsel *in absentia* who will act on their behalf. The absence of the party is established when the adjudicatory chamber has tried to submit the final report by email through the member association and no response has been received 15 days following the notification to the member association in accordance with article 43 of this Code.

41. Failure to cooperate

1. If the parties or other persons bound by this Code fail to cooperate in any manner or are dilatory in responding to any request from the Ethics Committee, the chairperson of the appropriate chamber issuing the request may, after warning them, charge them with a violation of article 19 of this Code.
2. To the extent the parties fail to cooperate, the investigatory chamber, in preparing a final report based on the file in its possession, and the adjudicatory chamber, in reaching a decision based on the file in its possession, may take into account that behaviour and add the failure to cooperate as an additional charge for violation of article 19 of this Code.

42. Languages used in proceedings

1. The languages used in proceedings shall be English, French and Spanish. The Ethics Committee and parties may choose any of these languages.
2. FIFA may, if necessary, use the services of an interpreter.
3. Decisions shall be taken in the language used during the relevant proceedings. Efforts will be made to use the parties' language, wherever possible.

43. Notification of decisions and other documents

1. Decisions and other documents exchanged between FIFA and the party concerned shall be sent exclusively via the FIFA Legal Portal.
2. All of the parties shall be notified of the decisions.
3. Decisions and other documents intended for persons bound by this Code may be addressed to the person directly and/or to the association concerned on condition that it forwards the documents to the intended recipient. In the event that the documents were not also or solely sent to the party concerned, these documents shall be considered to have

been communicated properly to the ultimate addressee four days after communication of the documents to the association. The time limit shall commence at midnight (Central European Time) the day after the communication of the document in question.

4. Notification of a decision shall be effected by publication on the FIFA webpage where:
 - a) the whereabouts of the party are unknown and cannot be ascertained despite making reasonable enquiries;
 - b) service is impossible or would lead to exceptional inconvenience; or
 - c) a party has not provided a means of contact despite being instructed to do so.
5. Notification via the FIFA webpage is deemed accomplished on the day of publication.

44. Effect of decisions

1. Decisions passed by the Ethics Committee shall come into force as soon as they are communicated.
2. The Ethics Committee may rectify any obvious errors at any time.

Subsection 2: Proof

45. Various types of proof

1. Any type of proof may be produced.
2. Types of proof include, in particular:
 - a) documents;
 - b) reports from officials;
 - c) declarations from the parties;
 - d) declarations from witnesses;
 - e) audio and video recordings;
 - f) expert opinions;
 - g) all other proof that is relevant to the case.
3. During the investigation, where oral testimony is given, such testimony may be given in person, by telephone or via video.



46. Anonymous participants in proceedings

1. When a person's testimony in ethics proceedings conducted in accordance with this Code could lead to threats to them or put them or any person particularly close to them in physical danger, the chairperson of the competent chamber or their deputy may order, *inter alia*, that:
 - a) the person not be identified in the presence of the parties;
 - b) the person not appear at the hearing;
 - c) the person's voice be distorted;
 - d) the person be questioned outside the hearing room;
 - e) the person be questioned in writing through the chairperson of the competent chamber or their deputy;
 - f) all or some of the information that could be used to identify the person be included only in a separate, confidential case file.
2. If no other evidence is available to corroborate the testimony provided by the person concerned, such testimony may only be used in the context of imposing sanctions under this Code if:
 - a) the parties as well as their legal representatives had the opportunity to pose questions to the person concerned at least in writing; and
 - b) the members of the judicial body had the opportunity to interview the person concerned directly and in full awareness of their identity and to assess their identity and record in full.
3. Disciplinary measures shall be imposed on anyone who reveals the identity of any person granted anonymity under this provision or any information that could be used to identify such person.

47. Identification of anonymous participants in proceedings

1. To ensure their safety, persons granted anonymity under article 46 shall be identified behind closed doors in the absence of the parties. This identification shall be conducted by the chairperson of the competent chamber alone, their deputy or all the members of the competent chamber together, and shall be recorded in minutes containing the relevant person's personal details.
2. These minutes shall not be communicated to the parties.
3. The parties shall receive a brief notice which:
 - a) confirms that the person concerned has been formally identified; and
 - b) contains no details that could be used to identify such person.

48. Inadmissible evidence

Proof that has been obtained by means or ways involving violations of human dignity or that obviously does not serve to establish relevant facts shall be rejected.

49. Evaluation of proof

The Ethics Committee shall have absolute discretion regarding proof.

50. Standard of proof

The members of the Ethics Committee shall judge and decide on the basis of their comfortable satisfaction.

51. Burden of proof

The burden of proof regarding breaches of provisions of the Code rests on the Ethics Committee.

Subsection 3: Time limits

52. Beginning and end of time limit

1. Time limits notified directly to the party or to a representative appointed by the party shall commence at midnight (Central European Time) the day after receipt of the notification.
2. Where a document is sent to a person through the respective member association and is not also sent to the person concerned or their legal representative, the time limit shall commence at midnight (Central European Time) four days after receipt of the document by the association responsible for forwarding it. Where the document was also sent to the person concerned or their legal representative, the time limit shall commence at midnight (Central European Time) the day after receipt of the document in question.
3. If the last day of the time limit coincides with a public holiday in the place of domicile of the person required to comply with the document by a certain deadline, the time limit shall expire on the next working day.
4. Time limits are deemed to have been complied with if the relevant action has been completed by midnight (Central European Time) at the latest on the last day of the stipulated deadline.



53. Compliance

1. The time limit has been met only if the action required has been carried out before expiry of the time limit.
2. The document must be submitted , to the relevant body via the FIFA Legal Portal by no later than midnight on the last day of the time limit.
3. Costs and fees payable are considered to have been paid in time if the payment has irreversibly been made to FIFA's account by midnight on the last day of the time limit.

54. Extension

1. Time limits set forth in this Code may not be extended.
2. Time limits set by the Ethics Committee may be extended upon reasoned request. A time limit may only be extended for a second time in exceptional circumstances.
3. If an extension of the time limit is refused, two extra days may be granted. In emergencies, the refusal to grant the extension may be announced orally.

Subsection 4: Suspension of proceedings

55. Suspension or continuation of proceedings

1. In the event that a person bound by this Code ceases to serve in their function during proceedings, the Ethics Committee shall remain competent to continue investigatory proceedings and/or render a decision.
2. In the event that a person bound by this Code ceases to serve in their function, the investigatory chamber may initiate and conduct the investigation, create a final report and hand it over to the adjudicatory chamber. The adjudicatory chamber may suspend the proceedings or take a decision as to the substance and impose appropriate sanctions.

Subsection 5: Procedural costs

56. Procedural costs

The procedural costs are made up of the Ethics Committee's costs and expenses incurred in connection with the investigation and adjudicatory proceedings.

57. Procedural costs in case of closure of proceedings or acquittal

1. Except as otherwise provided herein, in the event of closure of proceedings or acquittal, the procedural costs shall be borne by FIFA.
2. A party may be ordered to pay the procedural costs in part or in full in the event of closure of proceedings or acquittal if they culpably caused the proceedings to be initiated or hindered the conduct of the proceedings.

58. Procedural costs if sanctions are imposed

1. Procedural costs shall be borne by the party that has been sanctioned.
2. If more than one party is sanctioned, the procedural costs shall be assessed proportionally in accordance with the degree of guilt of the parties.
3. Part of the procedural costs, in particular the costs of the investigation proceedings, may be borne by FIFA, as appropriate in respect of the imposition of sanctions.
4. The procedural costs may be reduced or waived in exceptional circumstances, in particular taking into account the party's financial circumstances.

59. Procedural compensation

No procedural compensation shall be awarded in proceedings conducted by the Ethics Committee.

SECTION 2: INVESTIGATION PROCEEDINGS

Subsection 1: Preliminary proceedings

60. Right to submit complaints

1. Any person may file a complaint regarding potential breaches of this Code with the secretariat of the investigatory chamber. Complaints must be submitted in writing, including available evidence. The secretariat shall inform the chairperson of the investigatory chamber of the complaints and act upon their instructions.
2. There is no entitlement for proceedings to be opened following submission of a complaint.
3. Any person bound by this Code who lodges a complaint against a person whom they know to be innocent or in any other way takes malicious steps related to the initiation of proceedings under this Code shall be sanctioned with an appropriate fine of at least CHF 10,000 as well as a ban on taking part in any football-related activity for a minimum of two years.



61. Preliminary investigations

1. Upon the instruction of the chairperson of the investigatory chamber, the secretariat of the investigatory chamber shall carry out an initial evaluation of the documents submitted with the complaint.
2. The secretariat of the investigatory chamber may initiate preliminary investigations into a potential breach of this Code based on a filed complaint and shall act upon the instructions of the chairperson of the investigatory chamber. This may include, in particular, engaging third parties – under the leadership of the chairperson – with investigative duties, appointing an integrity expert (cf. article 36 of the FIFA Disciplinary Code), collecting written information, requesting documents and obtaining witness statements.
3. The chairperson of the investigatory chamber may initiate preliminary investigations at their own discretion and at any time.

62. Opening of investigation proceedings

1. If the preliminary investigation is found to establish a prima facie case, the chairperson of the investigatory chamber shall open investigation proceedings. The chamber shall examine aggravating and mitigating circumstances equally.
2. The parties shall be notified of the opening of investigation proceedings and the possible rule violation. Limited exceptions to this rule may be made for safety and security reasons or if such disclosure would interfere with the conduct of the investigation.
3. The chairperson of the investigatory chamber shall report to the investigatory chamber regularly on non-opened cases.

Subsection 2: Initiation and conduct of investigation proceedings

63. Initiation of investigation

1. The chairperson of the investigatory chamber shall decide on the initiation of investigation proceedings.
2. Grounds do not need to be given for the initiation of investigation proceedings and the decision may not be contested.

64. Duties and competences of the investigatory chamber

1. The investigatory chamber may investigate potential breaches of provisions of this Code on its own initiative or based on complaints at its full and independent discretion.

2. If the investigatory chamber deems that there is no *prima facie* case, it shall not open any investigation proceedings and it shall close the case. In addition to the internal closure of the proceedings, the investigatory chamber may (i) send a closing letter to the interested party reminding them of their duties, and/or (ii) send a closing letter to the interested party informing them that no breaches of the Code have been found. The investigatory chamber may communicate in this respect where deemed relevant.
3. Once the investigation has been completed, the investigatory chamber shall prepare a final report on the investigation proceedings stating the relevant rules that have been breached for which they require a judgment by the adjudicatory chamber. The report, together with the related investigation files, shall be forwarded to the adjudicatory chamber. Should a hearing be conducted, one or more members of the investigatory chamber may present the case before the adjudicatory chamber.
4. As part of the investigatory process, the investigatory chamber may also investigate breaches of provisions of the FIFA Disciplinary Code which concern immoral or unethical conduct.

65. Conduct of proceedings

The chairperson of the investigatory chamber may lead the investigation proceedings themselves as the chief of the investigation or may assign this role formally to the deputy chairperson or a member of the investigatory chamber. This person shall be designated the chief of the investigation.

66. Competences of the chief of the investigation

1. With the assistance of the secretariat, the chief of the investigation shall investigate by means of written enquiries and written or oral questioning of the parties and witnesses. The chief of the investigation may also undertake any further investigative measures relevant to the case; in particular, they may verify the authenticity of documents relevant to the investigation by procuring affidavits.
2. If the chairperson of the investigatory chamber is acting as the chief of the investigation, they may ask another member of the investigatory chamber to assist them. In cases where the chairperson is not acting as the chief of the investigation, they may ask the chairperson of the investigatory chamber to assign additional members of the investigatory chamber to conduct the investigation alongside them. The chairperson may, where that is the case, also assign additional members at their own discretion.
3. If the chairperson is acting as the chief of the investigation, they may, in complex cases, engage third parties – under the leadership of the chief of the investigation – with investigative duties. The enquiries to be made by such third parties must be clearly defined. Where the chairperson is not acting as the chief of the investigation, the chief of the investigation may submit the respective request to the chairperson.



4. If the parties and the other persons bound by this Code fail to cooperate in establishing the facts of the case, the chief of the investigation may request the chairperson of the investigatory chamber to impose a warning, and in case of recurrence, to impose disciplinary measures, including a ban on taking part in any football-related activity of up to 90 days. If the chairperson is acting as the chief of the investigation, the deputy chairperson shall decide.

Subsection 3: Conclusion of investigation proceedings

67. Conclusion of investigation proceedings

1. If the chief of the investigation considers the investigation to be adequate, they shall inform the parties that the investigation proceedings have been concluded and provide them with a copy of the investigation files, including a brief summary of the main potential charges. The parties will then have ten days from that notification to submit any observation or comment.
2. If the chief of the investigation considers that there are sufficient grounds to establish that rules have been breached, they shall forward the final report together with the investigation files to the adjudicatory chamber. The chief of the investigation may also inform the adjudicatory chamber that other allegations, which might be contained in the file, may still be under investigation.
3. If the chief of the investigation considers that there are no sufficient grounds to establish that rules have been breached, they shall close the case. In addition to the internal closure of the proceedings, the investigatory chamber shall send a closing letter to the party reminding them of their duties, as well as informing them of the outcome of the investigations and that any ongoing provisional sanction is lifted.
4. If proceedings have been closed, the investigatory chamber may reopen the investigation if new facts or evidence suggesting a potential breach come to light.

68. Final report

1. The final report shall contain all the relevant facts and relevant evidence gathered and mention the possible rule violation.
2. The final report shall be signed by the chairperson of the investigatory chamber. If the chairperson did not act as the chief of the investigation, the chief of the investigation shall also sign the final report.

69. Plea bargain (application of a sanction by mutual consent)

1. At any time during the investigation, but at the latest when the case is about to be decided by the adjudicatory chamber or before the hearing as provided for by article 76 of this Code, the parties may enter into an agreement with the chairperson of the investigatory chamber for the application of a sanction by mutual consent.
2. Should the chairperson of the adjudicatory chamber consider that the agreement complies with this Code and the sanction settled is correctly applied, the agreement becomes immediately effective and the settled sanction becomes final and binding, and is not subject to any further appeal.
3. Should any monetary sanction provided by the plea agreement not be fully executed by the party concerned within 15 days of the date of the decision, the agreement is automatically revoked.
4. Should any compliance training and/or community football service provided by the plea agreement not be fully executed by the party concerned within the terms established within the agreement, the agreement is automatically revoked.
5. Whenever a plea agreement is revoked, the adjudicatory chamber shall decide the case within the 60 days that follow on the basis of the file, and no further plea agreement will be allowed between the parties concerned and the chairperson of the investigatory chamber.
6. No plea agreement shall be allowed concerning sanctions related to the protection of physical and mental integrity, or related to offences of bribery and corruption, misappropriation and misuse of funds, and manipulation of football matches or competitions, unless the party concerned provides substantial assistance. Substantial assistance may be considered where the relevant party:
 - a) fully disclosed in a signed written statement or recorded interview all the information they possess in relation to the infringement(s); and
 - b) fully cooperated with the investigation and adjudication of any case or matter related to the information provided, including but not limited to presenting a testimony at a hearing if requested to do so by FIFA or the relevant deciding panel;
 - c) provided credible information which constitutes a significant part of a case or proceeding subsequently initiated or, at least, which would have provided a sufficient basis on which to initiate a case or proceeding.

Notwithstanding the above, in cases of sexual abuse, no plea agreement shall be allowed with the principal actors or any other person directly participating in such conduct.



SECTION 3: ADJUDICATORY PROCEEDINGS

Subsection 1: Initiation and conduct of proceedings

70. Duties and competences of the adjudicatory chamber

1. The chairperson of the adjudicatory chamber shall examine the final report and investigation files with the assistance of the secretariat.
2. If the chairperson of the adjudicatory chamber deems that there is insufficient evidence to proceed, they may close the case and shall inform the party accordingly.
3. If the chairperson of the adjudicatory chamber deems that the matter should be adjudicated, they shall proceed with the adjudicatory proceedings and request that the secretariat send a copy of the final report and investigation files to the parties concerned.
4. The adjudicatory chamber may gather evidence, documents or information or request clarification at any time prior to the hearing or the deliberations on the matter.

71. Adjudicatory proceedings

1. The chairperson of the adjudicatory chamber shall inform all the parties concerned that the case shall be decided either on the basis of the report of the investigatory chamber together with the investigation files or – upon the request of any party concerned – of a hearing to be scheduled.
2. If there is no request for a hearing, the chairperson of the adjudicatory chamber shall inform the parties of the proceedings and the investigatory chamber that the case shall be decided on the basis of the existing documents and submissions and shall establish a final deadline to file their respective final requests.
3. Should a hearing be held, the secretariat of the adjudicatory chamber shall inform all the parties concerned and shall forward to them a procedural order, with the rules of the hearing, established by the chairperson of the adjudicatory chamber.
4. All the parties in the proceedings and their representatives, subject to article 39 paragraph 4, as well as the representatives of the investigatory chamber are entitled to attend the hearing to discuss and submit orally their respective requests.
5. As part of the adjudicatory process, the adjudicatory chamber may also rule on breaches of provisions of the FIFA Disciplinary Code which concern immoral or unethical conduct.

72. Jurisdiction of the chairperson of the adjudicatory chamber ruling alone

1. The chairperson of the adjudicatory chamber may take decisions alone in cases related to breaches sanctioned only with monetary sanctions or when the sanction to be imposed is a warning, reprimand or compliance training.
2. The chairperson of the adjudicatory chamber is also responsible for ratifying the plea agreement entered into between the parties and the investigatory chamber, where applicable.

73. Right to be heard

Before the adjudicatory chamber issues any final decision, the parties are entitled to submit their position, to present evidence and to inspect evidence to be considered by the adjudicatory chamber in reaching its decision. These rights may be restricted in exceptional circumstances, such as when confidential matters need to be safeguarded, witnesses need to be protected or if it is required to establish the elements of the proceedings.

74. Rejection of motions for the admission of evidence

1. In accordance with articles 48 and 49 and other relevant provisions of the Code, the chairperson of the adjudicatory chamber may reject the substantiated motions for the admission of evidence submitted by the parties.
2. The parties shall be informed if their motion has been rejected with a brief outline of the grounds of the decision. The rejection may not be contested.

Subsection 2: Composition, hearings

75. Composition of the panel

1. The chairperson of the adjudicatory chamber shall decide the composition and number of members in the panel and shall provide them with the relevant files. The parties shall be informed of the composition of the panel.
2. Without prejudice to article 72, the panel's decisions shall be deemed to be legally valid if at least three members are present.

76. Hearings, principles

1. Hearings shall be conducted behind closed doors and in the presence in situ of the requesting party.
2. Hearings of the adjudicatory chamber are not open to the public, except in cases when it has been duly requested by the defendant. The chairperson or their nominee decides, at their own discretion, under what conditions a public hearing may take place.



3. Misconduct by the party that took place after the submission of the final report may be addressed by the investigatory chamber during its closing statement. In this sense, the investigatory chamber may present the relevant facts and evidence, mention the possible rule violation and submit a recommendation to the adjudicatory chamber on the appropriate measures. The party shall have the right to respond to these new charges during the hearing. In the absence of a hearing, the investigatory chamber may submit its recommendation within two days after the party's position, who will have then the right to reply in written form in compliance with the deadline granted by the adjudicatory chamber.
4. If there is no hearing, the chairperson shall schedule the deliberations and decide on the number of members and the composition of the panel. The parties shall be informed to this effect.

77. Hearings, procedure

1. The chairperson of the adjudicatory chamber shall conduct the hearing in whatever manner they deem appropriate, provided it is consistent with this Code.
2. It is the responsibility of the parties to ensure the appearance of the witnesses requested by them and to pay all costs and expenses associated with the parties' and the witnesses' appearance.
3. Witnesses called by the parties and/or by the investigatory chamber shall, in principle, appear in person. The chairperson of the adjudicatory chamber or their deputy may, however, decide to hear the parties by video conference, which shall be conducted under the specific conditions set by the chairperson or their deputy/acting chairperson.
4. Wherever possible, the hearing shall proceed according to the following sequence:
 - a) testimony of any witnesses called by the accused and approved by the adjudicatory chamber;
 - b) testimony of any witnesses called by the investigatory chamber and approved by the adjudicatory chamber;
 - c) testimony of any witnesses called by the adjudicatory chamber;
 - d) closing statement by the investigatory chamber;
 - e) closing statement by a legal representative, if any, of the accused;
 - f) rebuttal statement by the investigatory chamber and the parties, if applicable;
 - g) final opportunity for the accused to speak.
5. Exceptionally, the chairperson of the adjudicatory chamber (or the deputy/acting chairperson in the respective proceedings) may decide to organise a hearing by means of video-conference.

Subsection 3: Deliberations, decisions

78. Deliberations

1. After the hearing, the adjudicatory chamber shall withdraw to deliberate on its decision in private.
2. If circumstances permit, the deliberations and decision-taking may be conducted via telephone conference, video conference or any other similar method.
3. Deliberations shall be conducted without interruption, unless there are exceptional circumstances.
4. The chairperson shall decide in which order the various questions will be submitted for deliberation.
5. The adjudicatory chamber is not bound by the legal assessment of the facts submitted by the investigatory chamber. In particular, the adjudicatory chamber may extend or limit the rule violations pointed out by the investigatory chamber.
6. The members present shall express their opinions in the order set out by the chairperson, who always speaks last.
7. A member of the secretariat shall be present during the deliberations.

79. Taking the decision

1. Decisions shall be taken by the majority of the members present.
2. Every member present shall vote.
3. In the event of a tied vote, the chairperson shall have the casting vote.

80. Grounds of decision

1. The adjudicatory chamber shall communicate its decision in full, written form.
2. In case of urgency, or under any other special circumstances, the adjudicatory chamber may notify only the terms of the decision to the party, which become immediately applicable. The full, written decision shall then be notified within the next 60 days.

81. Form and content of the decision

1. The decision shall contain:
 - a) the composition of the panel;
 - b) the names of the parties;
 - c) the date of the decision;



- d) a summary of the facts;
 - e) the grounds of the decision;
 - f) the provisions on which the decision was based;
 - g) the terms of the decision;
 - h) notice of the channels for appeal.
2. The decision shall be signed by the chairperson and transmitted by the secretariat.

82. Enforcement of decisions

It is the responsibility of the member associations, as well as of the relevant football officials, to make sure that the decisions taken and notified by the Ethics Committee are properly implemented, as required by the FIFA Statutes.

SECTION 4: APPEAL AND REVIEW

83. Appeal Committee

- 1. An appeal may be lodged by the party concerned, having a legally protected interest justifying amendment or cancellation of the decision, to the Appeal Committee against any decision taken by the Disciplinary Committee which relates to infringements of article 30 of this Code.
- 2. Further provisions relating to lodging an appeal and proceedings before the Appeal Committee are set out in the FIFA Disciplinary Code (cf. article 60 ff.).

84. Court of Arbitration for Sport

- 1. Decisions taken by the adjudicatory chamber are final, subject to appeals lodged with the Court of Arbitration for Sport (CAS) in accordance with the relevant provisions of the FIFA Statutes.
- 2. The aforementioned decisions may also be appealed at CAS by the chief of the investigation.

85. Review

- 1. The investigatory chamber of the Ethics Committee may reopen a case that has been closed following a legally binding decision if a party discovers significant new facts or proof that, despite the investigation, could not have been produced sooner and would have resulted in a more favourable decision. In case of such reopening, the provisions regarding investigation proceedings shall apply.

2. A request for review shall be made by the party concerned within ten days of discovering the reasons for review, or it will not be admitted.
3. The limitation period for submitting a request for review is one year after the enforcement of the decision.

SECTION 5: PROVISIONAL SANCTIONS

86. Provisional sanction

1. At any time during an investigation, the chairperson of the investigatory chamber or the chief of the investigation may request that the chairperson of the adjudicatory chamber impose provisional sanctions in order to ensure that investigation proceedings are not interfered with or when a breach of this Code appears to have been committed and a decision on the merits of the case may not be taken early enough.
2. The interested party may file their position against the request for provisional sanctions with the chairperson of the adjudicatory chamber within five days of the notification of the request for provisional sanctions.
3. The chairperson of the adjudicatory chamber shall decide without delay based on the file or they may decide to hear the interested parties or their representatives.
4. A provisional sanction shall start on the date on which it is notified (or deemed to be notified) by the chairperson of the adjudicatory chamber and shall end with the final decision of the adjudicatory chamber, unless lifted earlier in accordance with article 67 of this Code. The period of the provisional sanction shall however not exceed the maximum length of the sanction that may be imposed with regard to the related breach(es).
5. The duration of provisional sanctions shall be taken into account in the final decision.



IV.

FINAL PROVISIONS

87. Exemption from liability

Except in the case of gross negligence or malicious intent, neither the members of the Ethics Committee nor the secretariat staff may be held personally liable for any deeds relating to any procedure.

88. Official languages

1. This Code exists in English, French and Spanish.
2. In the event of any discrepancy between the three texts, the English version shall be authoritative.

89. Adoption and enforcement

1. The FIFA Council adopted this Code on 16 December 2022.
2. This Code comes into force on 1 February 2023.
3. The procedural rules enacted in this Code shall come into force immediately, and apply to all proceedings for which adjudicatory proceedings have not been formally opened, on the date stipulated paragraph 2 of the present article.

Doha, 16 December 2022

For the FIFA Council

President

Gianni Infantino

Secretary General

Fatma Samoura

FIFA®